



Questionnaire: Fulton Hogan - Avionics

MN-75016

Deadline to respond: 6 May 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Fulton Hogan Industries Pty Ltd's (**Fulton Hogan**) proposed acquisition of 100% of the shares in Avionics Holdings Pty Ltd, representing the Australian operations of the Avionics Group business (**Avionics**) (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisitions Register](#).

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **Wednesday, 6 May 2026** via email to mergers@acc.gov.au with the title *Submission re: Fulton Hogan - Avionics*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@acc.gov.au with the title *Request for call re: Fulton Hogan - Avionics*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's [confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

1. Provide a brief description of your business or organisation, including any commercial relationships with Fulton Hogan and/or Avionics.

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Questions for airports or buyers of AGL and airside civil construction services

2. Who do you see as the suppliers that can meet your needs for each of AGL services, and airside civil construction services?

3. Are there any particular qualifications that a supplier needs to provide AGL or airside civil construction services at your airport?

4. What are the main factors that determine your choice of AGL or airside civil construction services supplier? For example, price, tender terms, contractual terms, affiliation with an airfield control and monitoring system (CMS)?

Questions for AGL services providers

5. Identify your customers and head contractors of AGL services and the percentage of your total services supplied to each.

6. Identify whether you have tendered for work with Fulton Hogan as head contractor. If so, what was the result?

Questions for airside and civil construction businesses

7. Identify your suppliers of AGL services and the percentage of your total AGL spend supplied by each.

8. What are the main factors that determine your choice of AGL supplier? For example, price, tender terms, contractual terms, affiliation with an airfield control and monitoring system (CMS)?

9. Describe what would be required for your business to expand into the provision of AGL services.

10. Outline the effect on your business' ability to compete and tender for airside construction projects should your business' access to Avionics' AGL services be reduced/diminished.

General questions

11. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition, including any views or concerns on the effect of the Acquisition on competition in Australia.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [interim merger process guidelines](#).